



8.001 - Certification Overview

CFR § 246.7(c) Eligibility Criteria and Basic Certification Procedure; CFR § 246.7(e) Nutritional risk; CFR § 246.7(f) Processing Standards; CFR § 246.7(g) Certification Periods; WIC Policy Memorandum#2016-5 Separation of Duties at WIC Local Agencies

I. Policy Statement

When funding permits, WIC Program benefits must be disseminated to low-income pregnant, postpartum, and breastfeeding women; infants, and children up to age 5 who exhibit nutritional or medical risks, and who meet the established income eligibility criteria.

DC WIC local agencies must make WIC services available to any individual who meets the eligibility requirements and applies for participation. LAs must provide WIC services to participants at no cost or financial burden to the participant.

Local Agencies shall not:

- a. Limit participation to those persons who participate in that local agency's health services
- b. Require applicants to enroll in the local agency's health care system
- c. Require participants to be currently receiving health care from a private physician or other health care provider

All participants will be screened and certified using the Health and Nutrition Delivery System (HANDS) automated system. HANDS will automatically document the date of initial contact in the system. WIC staff are expected to input accurate information into HANDS. By entering and saving data in HANDS, WIC staff validate and confirm that what has been entered is accurate and truthful.

LAs shall not give participant information to a third party unless a signed agreement has been established between the WIC State Agency and the party in question. Such agreements will be made with the approval of DC Health. Such agreements may only be between the WIC Program and agencies that serve the WIC-eligible population.

Participant records may be released to the participant, or parent/legal guardian of a participant. If the participant or parent/legal guardian wishes to share information from WIC records with a third party, they may do so without involving the WIC LA.

II. Components of the Certification

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| <ol style="list-style-type: none">a. Intake / Eligibility Screening<ul style="list-style-type: none">○ Physical Presence○ Identity Verification○ Residency Verification○ Income Verification○ Categorical Eligibility○ WIC Rules and Regulations / Participant Rights and Obligations | <ol style="list-style-type: none">b. Health and Nutrition Assessment<ul style="list-style-type: none">○ Risk Code Identification○ Nutrition Education and Goal Setting○ Referralsc. Food Packaged. Documentation |
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III. Separation of Duties

In order to maintain the integrity of the WIC Program, adequate safeguards must be in place to prevent fraud and abuse. At minimum, the staff person who determines income eligibility and medical or nutritional risk cannot be the same person. Either person may issue food benefits. This policy ensures that one employee does not solely perform certification and issuance food benefits.

In instances where adherence to this policy is not achievable, such as sites with only one staff member on duty, the LA WIC Director or Nutrition Coordinator must perform a supervisory review of all non-breastfeeding infant certification records (food packages that contain infant formula), and at least 20% of a random sample of the remaining certification records, within two (2) weeks of certification. It is recommended that staff rotate so that the same staff person is not the only person that is known to the satellite service site. Documentation of file reviews must be maintained at the LA for review during Management Evaluations.

IV. Certification of WIC Staff and/or Family Members

LA staff and/or their family members may apply for WIC benefits at a service site where they, or their family member, are employed. In these cases, additional Program integrity measures must be implemented. LA staff:

- Shall not conduct any aspect of the eligibility determination or certification process for immediate family members, or themselves
- Shall not certify immediate family members, or themselves
- Shall not issue food benefits to an immediate family member, or to themselves
- May not be an AAR for more than two individuals at any given WIC service site, either for immediate family members or non-related persons

Failure to adhere to this policy will result in a serious offense, subject to the maximum sanctions allowed by Federal regulations.

V. Eligibility Determination

LA Staff determine if the applicant meets each of the following eligibility criteria:

- Residence
- Income
- Category
- Nutrition Risk

Image 1. Visual Map of the WIC Certification Process





VI. Basic Certification Guidelines

The following guidelines pertain to certification appointments.

- a. All certification data for each applicant certified shall be documented in the participant's HANDS record.
- b. All applicants must be **physically present**. See Policy 8.003 – Physical Presence and Identification, for more information.
- c. Every applicant or caretaker shall be informed of the illegality of dual participation.
- d. Every applicant or caretaker shall read, or have read to them, the “Rights and Obligations” statement. See Policy 8.002 – Intake Guidelines, for more information.
- e. During the initial certification, each participant, parent, or caretaker shall receive an explanation of how the local food delivery system operates and shall be advised of the types of health services available, where they are located, how they may be obtained, and why they may be useful.
- f. LAs must obtain anthropometric measurements (height or length and weight), hematological tests (blood work), and dietary and medical information using the ABCDE process for VENA appointments.
- g. The CPA/CPPA must analyze the following to identify appropriate nutritional and/or medical risk factors to assign corresponding risk codes and priority:
 - Anthropometric data using appropriate growth or weight grids
 - Hematological test results
 - Other health and dietary information obtained through the VENA process
- h. The CPA/CPPA will provide basic nutrition education and referrals based upon the comprehensive VENA results and identified medical/nutritional risks.
- i. The CPA/CPPA will tailor the food package based on risks, nutritional needs, and participant preference.
- j. Participants shall be issued appropriate food benefits during initial certifications and subsequent visits, which they can use at DC WIC authorized vendors. Food benefits may be issued remotely.
- k. LAs shall allow a 30-day certification period for individuals who do not present the necessary proof of residency, identity, or income at the time of assessment. Therefore, 30 days of food benefits should be provided to the participant. If the participant has not submitted the required documentation within the 30 days provided, they shall be terminated.
- l. Applicants failing to provide verification of eligibility data within the 30-day grace period will be denied participation in the program. They may reapply as soon as they have the necessary documentation.
- m. LAs shall provide a 15-day written or oral notice of certification due date for the participant.
- n. LAs will schedule applicants/participants for appropriate follow-up appointment(s).
- o. LAs shall attempt to contact all applicants who miss appointments. Contact attempts shall be made only if they have agreed to receive communication from the WIC Program.



VII. Certification Timeframes

A:	Will be certified for:
Pregnant Woman (PG)	Up to six (6) weeks postpartum. A pregnant woman enrolled in WIC who has had an abortion, spontaneous (miscarriage) or therapeutic, is eligible to receive food benefits up to six (6) weeks past the date the pregnancy ended and can continue up to six (6) months from the date her pregnancy ended as a postpartum participant. A pregnant woman who would have been eligible for the program during her pregnancy, who has had an abortion, spontaneous (miscarriage) or therapeutic, can also apply for food benefits. She is eligible for a total of six months of food benefits from the date the pregnancy ended.
Postpartum Woman (P)	Up to six (6) months postpartum.
Breastfeeding Woman Exclusively Nursing (EN) Partially Nursing (PN) Partially Nursing Plus (PN+)	Up to the infant's first birthday or until the woman ceases breastfeeding, whichever occurs first. A breastfeeding woman who requests, after the sixth month postpartum, more than the maximum amount of formula allowed for a mostly-breastfed infant will no longer receive supplemental foods, but will continue to count as a WIC participant receiving nutrition and breastfeeding education, support, and referrals. If a woman ceases to breastfeed prior to six months postpartum, she shall have her category changed to a postpartum woman. Staff shall update the Breastfeeding Surveillance screen and the postpartum woman shall be reassessed to identify Risk Codes.
Infant (I)	Approximately every six (6) months. LAs may certify an infant under six (6) months of age up to the last day of the month in which the infant turns one (1) year old, if the quality and accessibility of health care services are not diminished.
Child (C)	Approximately every six (6) months ending with the last day of the month in which a child reaches their fifth (5 th) birthday. LAs may certify a child for a period of up to one (1) year, provided the LA ensures that the child receives the required health and nutrition assessments, as set forth in § 246.11(e)(3).



Special Conditions

The certification period may be adjusted from the original ending certification date for several reasons. It can be shortened as much as needed or extended by 30 days. Some reasons for adjusting certification end dates include:

- i. Difficulty in appointment scheduling or getting to the service site for certification due to extreme hardship, e.g., illness, imminent childbirth, inclement weather conditions, distance to travel, high cost of travel, or documented physical disability that prevents travel
- ii. Holiday schedules impacting service site operations or the participant's ability to make it to the service site

If the participant is found eligible to continue receiving program services, the new certification period begins on the date the participant is certified again and receives the first set of food benefits in the new certification period.

VIII. Priority

All participants will automatically be assigned a priority level, triggered by the risk codes assigned by the MIS system or manually assigned by the CPA/CPPA. The priority which indicates the greatest level of risk will be used to certify the applicant. A detailed list of DC WIC risk codes and their priorities are located on the Local Agencies page of the DC WIC website at dcwic.org. Priority levels are described below:

Priority I	Pregnant women, breastfeeding women, and infants at risk based upon hematological or anthropometric measurements, or other documented nutrition-related medical conditions. Women who are breastfeeding Priority I infants with risk other than 702, or infants breastfed by Priority I women with risk other than 601. Out-of-state VOC are priority 0, all VOC are Priority I if there is waiting list in effect.
Priority II	Infants up to 6 months of age whose mothers participated in WIC during pregnancy. Infants up to 6 months of age born to women who would have been WIC-eligible based upon hematological or anthropometric measurements or other documented nutrition-related medical conditions. Women who are breastfeeding a Priority II infant with risk other than 702, or breastfeeding women who are eligible due to inadequate dietary patterns.
Priority III	Children at risk based upon hematological or anthropometric measurements or other documented nutrition-related medical conditions. High-risk postpartum women.
Priority IV	Pregnant women, breastfeeding women, and infants at risk due to inadequate dietary patterns.
Priority V	Children at risk because of an inadequate dietary pattern.
Priority VI	Postpartum women at nutritional risk.
Priority VII	Individuals certified for WIC solely due to homelessness or migrancy. Previously certified participants who might regress in nutrition status without continued provision of supplemental foods. NOTE: Regression may not be used for initial certification, may not be used for infants, and may not be used consecutively as a reason for subsequent certification. Regression can only be used twice in a five-year period.



IX. Service Timeframes

Applicants who fall into identified categories must be informed of their eligibility, ineligibility, or placement on a waiting list within the following number of days following the date of their request for WIC services:

10 Days	20 Days
Priority I pregnant women Infants < 6 months of age Homeless Migrants	All other applicants

X. Waiting Lists

The CPA/CPPA shall begin a waiting list after the LA has reached its maximum participation level by applying priority system described above to the LA's wait list. Further restrictions of categorical eligibility beyond that permitted by this policy is not allowed. See policy 7.007 for more information on waiting lists. Visit Local Agencies, Policies & Forms at dcwic.org for the Waiting List Form.

XI. Food Delivery Discussion

At certification, LA staff shall discuss the food delivery system with the participant/AR in their preferred language. This discussion shall include the following:

- i. Which foods are authorized for purchase with WIC food benefits
- ii. Encourage the participant to look for the 'We Accept DC WIC' decal when going to a vendor to use their eWIC card. If the participant would like to see the list of currently authorized vendors, they may view it on the "Locations - Vendors" section of www.dcwic.org, or the "Vendor Search" section of the EzWIC App. If the participant requests a printed version of the vendor list, staff shall provide a current printed list of vendor names, addresses, and phone numbers.
- iii. How to use their food benefits – see policy 9.001 for more information

Staff shall assess participants' understanding of allowable WIC foods and the proper use of food benefits. For additional details regarding frequency of discussing the Food Delivery System requirements, refer to Policy 9.001.

XII. DC WIC Program eWIC Card

Participants will be issued one eWIC card per family. Participants will select a 4-digit personal identification number (PIN). The eWIC card and PIN can be used at all DC WIC authorized vendors to access assigned food benefits. Refer to policy chapter IX. Food Delivery, for more information on eWIC cards.

Note: If the family includes a foster child, please refer to Policy 8.008 - Eligibility and Certification for Special Cases, for additional details regarding issuance of eWIC cards to families with foster children.



XIII. Infant/Child with Safety Plan

A family with a child may present with a safety plan. A safety plan is a written agreement that a social worker from the Child and Family Services Agency (CFSA) developed with the family which clearly describes the safety services that will be used to manage threats to a child's safety for a temporary period of time. This child is not considered a foster child and shall be included in the family's eligibility determination. Up to two months (60 days) of food benefits may be issued and eligibility shall be reassessed at the next appointment. The safety plan shall be scanned into the participant's HANDS record.

Note: After the safety plan expires, the participant may present as a foster child with a Notice to Provider or may return to a parent's custody. If they return to a parent's custody, documentation may not exist as the safety plan expires. See policy 8.008 for additional details.

XIV. WIC Education, Rules and Regulations

Education

WIC staff will follow the Nutrition Education guidelines as outlined in the policies of Section II. Nutrition Services. This section includes: Program Education Requirements for Participants; Participant- Centered Nutrition Education for Participants; Nutrition Education Care Standards; and High-Risk Nutritionist Consults.

At each certification, participants will be informed of the WIC Rules and Regulations, which include:

- The duration of the Certification period
- The participant is qualified due to income, category, and nutrition risk
- Option to register to vote
- An explanation of the food package and how these foods can improve their health status
- Food Benefits, VOC, and eWIC card security
- Option to report problems with a DC WIC authorized vendor, WIC participant, WIC employee, or WIC fraud by calling: 202-442-9397, emailing info.vendor@dc.gov, or completing the online form at www.dcwic.org/contact-us
- Participants/ARs will keep scheduled appointments or notify LA staff if unable to do so
- Verification of marks if the applicant cannot write his or her name (See Appendix A)

XV. Referrals

Documentation of referrals shall be performed at every certification by selecting the "referred" status for mandatory referrals (generated by the mandatory referral list) in the Referral section of the Care Plan screen in HANDS. By documenting "referred," staff confirm that they have discussed referral programs with the participant or AR.

Refer to Policy 8.018 - Referrals Overview, and 8.020 - Substance Use Screening, Education, and Referrals for additional details regarding required referrals.



XVI. Release of Information

An applicant or participant requesting for information to be sent to a third party or organization (e.g., a doctor or a health maintenance organization) shall sign a release form. The release form shall not be signed until the Certification process is completed and the applicant has been informed of their eligibility determination.

Refer to Section 12 of the Local Agency Policy & Procedure Manual for more information on releasing WIC client information.